STANDARD OPERATING PROCEDURE			I-4100
	SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA **GREG LONDON** **SHERIFF**	DATE ISSUED 12/15/08	DATE REVISED **03/05/24**	DATE REVIEWED 02/02/25
		APPROVED: *GREG LONDON*		
CHAPTER TITLE CRIMINAL INVESTIGATIONS	RESOURCES NRS 28-317 THROUGH 28-322, 29-216 SARPY COUNTY SEXUAL ASSAULT LAW ENFORCEMENT PROTOCOL			
SUBJECT SEXUAL ASSAULT INVESTIGATIONS	CROSS-REFERENCE P-4810 CRIME SCENE G-10200 EVIDENCE AND PROPERTY I-4200 CHILD ABUSE INVESTIGATION			

I. Purpose:

The purpose of this policy is to establish the procedures for completing sexual assault investigations when assigned to the Investigations Division.

II. Policy:

Generally, the Sarpy County Road Patrol will be responsible for the initial investigation of sexual assault crimes. When it is determined that a felony sexual assault has possibly occurred whether the victim is an adult or a child, the Investigations Division shall be responsible for the completion of the investigation including all medical procedures. The primary objectives in responding to sexual assault calls are to protect and assist the victim, investigate the crime, enforce the law against the perpetrator when probable cause exists, and collect and preserve evidence to support successful prosecution. No adult, youth, or child victim of an alleged sexual assault shall be asked or required to submit to a polygraph examination during the investigation to verify the veracity of his or her statement(s).

III. Definitions:

A. Sexual Assault Victim: Any person who reports being sexually assaulted regardless of age, race, or gender.

B. Sexual Assault Nurse Examiners (SANE) / Forensic Nurse Examiner (FNE): A sexual assault nurse examiner (SANE) is a registered nurse trained in the forensic examination of victims of sexual assault and credentialed by the Nebraska Board of Nursing, as well as their respective operations facility. An FNE conducts the medical examination, and documents and treats injuries sustained. As a secondary focus, they will collect and preserve evidence, and testify in legal proceedings as needed.

C. False Reports: Due to the nature of the crime, inconsistent, inaccurate, or incomplete information provided by a victim is understandable and does not necessarily represent a false report. A false report is determined if an individual furnishes material information he or she knows to be false to any law enforcement officer or other official with the intent to initiate an investigation of an alleged criminal matter or to impede the investigation of an actual criminal matter.

IV. Procedure:

A. Response to Reports of Sexual Assaults:

1. Deputies shall respond to all sexual assaults, attempted sexual assaults, or other sexual assault related incidents.

2. If the victim requests to speak to a deputy of the same sex, attempts shall be made to accommodate that request.

3. If the sexual assault involved any penetration or the exchange of any bodily fluids, it is recommended that the victim have a forensic medical examination and a physical evidence collection kit completed. The examination and evidence collection should be completed as soon as possible after the report of the sexual assault.

a) All prepubescent children who are victims of any sexual assault shall be taken to Project Harmony for a forensic interview and medical examination. This examination may include a forensic evidence collection kit when within the following time frame:

Male and female children; last sexual contact within 72 hours. For females, this applies if the female is pre-menarchal (has not started menstruating).

b) All adolescents under the age of eighteen (18) who are victims of *interfamilial* sexual assault shall be taken to Project Harmony for a forensic interview and medical examination. This examination may include a forensic evidence collection kit if within the following time frame:

Male and female adolescents; last sexual contact within 120 hours. For females this applies if post-menarchal (has started menstruating) otherwise the above 72 hours guidelines apply.

c) Do NOT send children or adolescents directly to Children's Hospital, Methodist Hospital or CHI Hospitals for their medical exam/evidence collection kit for suspected sexual abuse prior to contacting Project Harmony. If the victim has been transported to a hospital prior to

notification, the responding deputy or investigator shall contact Project Harmony for direction.

d) Other considerations for adolescents: If the adolescent is under the influence of alcohol or drugs, it is recommended that the youth be taken to Methodist Hospital or a local CHI Hospital, as they have SANE/FNE providers and have the capabilities to monitor and treat the youth who may be under the influence.

4. If consent is given, adolescents who are not victims of *interfamilial* sexual assault and adult sexual assault victims shall be transported to a SANE approved facility by a deputy or private party (e.g. family member). CHI Hospitals and Methodist Hospitals have sexual assault nurse examiner programs, which specialize in the completion of sexual assault examinations and evidence collection.

a) Upon arrival at a medical facility, law enforcement shall request a sexual assault kit be completed by a SANE/FNE nurse.

b) Parental consent may be required for individuals seventeen (17) years or younger for the collection of a sexual assault kit, unless a parent is a suspect or the victim is a ward of the state.

c) Evidence collection through a standardized state approved sexual assault kit will only occur with consent of the victim. (Collection of kit is possible within 120 hours of the assault, 72 hours if the victim is premenarchal).

d) The assigned investigator shall respond to the appropriate facility unless directed otherwise by an Investigations Supervisor. Upon arrival, the investigator shall advise and collaborate with the SANE Nurse to determine the need for a kit to be completed, depending on the circumstances of the case.

e) The assigned investigator may request a urine and/or blood draw kit be completed as part of the evidence collection.

f) Sexual assault kits and other related evidence shall be turned over to the responding investigator and submitted as evidence according to G-10200 Evidence and Property.

g) The assigned investigator shall contact the Heartland Family Services Crisis Hotline (1-800-523-3666) for all sexual assault calls not handled at Project Harmony.

h) The assigned investigator may participate as directed by the SANE/FNE (e.g. assist in questioning to prevent duplication). The

on-call investigator shall complete a report regarding the medical examination and shall either take custody of any evidence taken by the SANE/FNE or ensure a deputy responds to take custody of the evidence. If a deputy other than the assigned investigator takes custody of the evidence, he or she shall complete a supplemental report.

B. **Evidence Collection:** The assigned investigator shall ensure that all evidence at the scene(s) of the sexual assault is collected.

1. The assigned investigator, in conjunction with Road Patrol units, should identify and secure all potential crime scene locations. All potential locations should be processed for evidence. If necessary, the appropriate crime lab should be contacted to gather evidence (see P-4810 Crime Scene).

2. Evidence collection shall include but shall not be limited to:

a) Victim's clothing at time of assault.
b) Bedding (e.g. sheets, blankets, etc.) if assault occurred on a bed.
c) Any towels, toilet paper, Kleenex or other item that may have been used to clean up after the assault.
d) Fabric samples if assault occurred on a covered surface (e.g. couch).
e) Any prophylactic that may have been used during the assault.
f) Any objects used during the assault.

C. **Interviewing the Victim:** Victims should generally be interviewed after a forensic medical examination is completed and after treatment is provided. Interviews may be video and/or audio recorded.

1. The victim will be allowed to shower, eat, sleep or tend to other personal needs before the interview, if necessary.

2. Deputy conducting the interview shall complete a Sexual Assault Preliminary Investigation Guide form during the interview process.

3. If the interview is conducted at the hospital, victim advocate presence will be allowed at the request of the victim.

4. Victims shall be encouraged to complete a voluntary statement.

5. Victims shall not be cited for the use of narcotics or drunk driving if admitted to during an interview, but may be cited/arrested if found to be in possession of a controlled substance.

6. Deputies shall not ask, or require, a victim of a sex offense to submit to a polygraph examination as a condition for proceeding with the investigation.

D. **Drug/Alcohol Involved Sexual Assault:** If during the investigation, the investigator suspects the victim may have been impaired because of drugs or alcohol, the victim should be requested to undergo a drug screening.

1. If the assault took place within 12 hours, the victim should be requested to provide a blood sample, to be taken by trained medical staff.

2. If the assault took place within the previous 120 hours, the victim should be requested to provide a urine sample for testing.

3. When a sample is placed into evidence, the investigator should request testing specifically for GHB, Rohypnol, and any other suspected substance in addition to the general drug screening.

4. Victims should be advised that a full drug screening is necessary to identify any drugs that may have been used to facilitate the assault and that the victim will not be charged for any personal drug use revealed by the test.

E. **Anonymous Sexual Assault Reports:** If a deputy responds to the report of a sexual assault (e.g. at a hospital), but the victim refuses to provide any information, the deputy should explain that no investigation will be completed without a victim's name or information. If the victim continues to refuse to provide information, the deputy shall adhere to the following procedures:

1. The responding deputy shall complete an information report, but the victim shall not be required to provide his or her identity.

2. The victim shall be provided an incident report number and may complete an assault report at a later date.

3. An anonymous victim may have a sexual assault forensic medical examination and a physical evidence collection kit completed. If so, the deputy shall collect any items provided and place them into evidence using the provided incident report number. These items of evidence shall be maintained indefinitely.

F. **False Reports:** If a thorough investigation has been completed and it is determined that a sexual assault has not been committed, the following procedures shall apply:

1. The individual who made the false report may be requested to submit to a polygraph examination. The examination shall only be conducted if the original sexual assault investigation has been closed as unfounded.

2. The individual making the false accusation may be cited/arrested for making a false report.

G. **Sexual Assault Kits**: If a sexual assault evidence kit is collected as evidence, it shall be sent to the NSP lab for testing, regardless of the outcome of the criminal case.

1. Investigators, as soon as practical after collection, shall request the Property/Evidence Unit to send the kit to the NSP lab for processing.